

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2024PRDE031446: IN THE MATTER OF BRIAN ATNIP
07/09/2026 in Department J6
Hearing on Petition for Waiver of Accounting and Final Distribution**

The court intends to accept the waiver of account and approve the report; approve statutory attorney fees of \$25,598.00; approve reimbursement of costs in the amount of \$3,121.53; approve a closing reserve of \$2,000.00; and approve proposed distribution consistent with decedent's will.

The statutory compensation for personal representative of \$25,598.00 has been correctly calculated.

Petitioner states he is the named Executor of Mona Beth Atnip's Will, and that "As such, Petitioner is the acting Personal Representative of the Estate of Mona Beth Atnip. All interest owed to the estate of Mona Beth Atnip from her role as Executor of the Estate of Brian Atnip shall be distributed through her Will." A copy of Mona Beth Atnip's Will is attached as Exhibit "A", and that an Acceptance of Compensation signed by Kevin Louis Atnip, Successor Executor of the Estate of Brian Atnip and Executor of Mona Beth Atnip's Will is attached as Exhibit "C".

Has petitioner been appointed executor of Mona Beth Atnip's estate by a court? If so the appointed executor has the authority to approve the proposed fee split. Is the estate of Mona Beth Atnip passing through an affidavit of small estate? If so, then the trustee of the Mona Atnip Trust has the authority to approve the fee split.

If petitioner is the court-appointed executor for the estate of Mona Beth Atnip or if the estate of Mona Beth Atnip is passing pursuant to an affidavit of small estate an petitioner is the trustee of the Mona Atnip Trust, then the court will accept the consent to the fee split and approve the fees as requested in the Supplement filed 06/22/26, otherwise, the court intends to continue the hearing to 08/13/26 at 9:00 a.m. in Department J6 and order a verified supplement to be filed by 08/07/26.